

Court No. - 21

Case :- WRIT - C No. - 28353 of 2014

Petitioner :- Sneha Devi

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- M.L. Rai

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Krishna Murari, J.

Hon'ble Mrs. Vijay Lakshmi, J.

We have heard Sri M.L.Rai, learned counsel for the petitioner and Sri V.K.Srivastava, learned counsel for respondent no. 2.

The petitioner has approached this Court seeking a writ of mandamus to command the respondents to provide electricity connection in the rented accommodation in her possession. A perusal of the pleadings goes to show that the petitioner has applied for electricity connection only on 10-05-2014. Photocopy of the application annexed along with writ petition goes to show that the application form is incomplete and many column has not been filled in.

Clause 4.1 of the U.P. Electricity Supply Code, 2005 provides that the licensee shall on an application by the owner or occupier of any premises, located in his area of supply, give supply of electricity to such premises within one month after receipt of completed application.

The application was made by the petitioner only on 10-05-2014 and without awaiting the period prescribed in the Code, she has approached this Court.

Writ petition is premature and stands dismissed.

Order Date :- 21.5.2014

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